CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

THIRD SECTION

PARTIAL DECISION

AS TO THE ADMISSIBILITY OF

Applications nos. 23720/02, 23735/02 and 23736/02
by Turgut KOÇAK, Hasan YAVAŞ and Necmi ÖZYURDA
against Turkey

The European Court of Human Rights (Third Section), sitting on 3 July 2003 as a Chamber composed of

Mr G. RESS, *President*,
Mr I. CABRAL BARRETO,
Mr L. CAFLISCH,
Mr R. TÜRMEN,
Mr B. ZUPANČIČ,
Mrs H.S. GREVE,
Mr K. TRAJA, *judges*,,

and Mr V. BERGER, *Section Registrar*,

Having regard to the above applications lodged on 24 May 2002,

Having deliberated, decides as follows:

THE FACTS

The applicants, Turgut Koçak, Hasan Yavaş and Necmi Özyurda, are Turkish nationals, who were born in 1949, 1960 and 1964 respectively. They are represented before the Court by Mehmet Ali Keleş, Selçuk Kozağaçlı, Elvan Olkun, N. Betül Vangölü and Kenan Arslan, lawyers practising in Ankara.

The facts of the case, as submitted by the applicants, may be summarised as follows.

The applicant Turgut Koçak is the Chairman and Hasan Yavaş and Necmi Özyurda are the Administrative Board members of the Turkish Socialist Workers Party (*Türkiye Sosyalist Işçi Partisi*).

On 12 December 2000 the Turkish Socialist Workers Party Building was searched.

On 19 December 2000 the applicants were detained on remand.

On 9 January 2001 the Public Prosecutor at the Ankara State Security Court filed an indictment with the court and accused the applicants of aiding and abetting an illegal terrorist organisation and requested the court to apply Article 169 of the Criminal Code.

On 15 May 2001 the Ankara State Security Court relying on the documents and materials seized in the Party building found the applicants guilty and sentenced them to three years and nine months' imprisonment.

The applicants appealed to the decision of the Ankara State Security Court.

On 26 November 2001 the Court of Cassation dismissed the appeal lodged by the applicants and upheld the State Security Court's decision.

COMPLAINTS

The applicants complain that they did not receive a fair trial, that the presumption of innocence was violated and that the opinion of the Principal Public Prosecutor before the Court of Cassation was not communicated to them. They invoke Articles 6 §§ 1, 2 and 3 (b) and 17 of the Convention.

The applicants complain under Article 14 of the Convention taken together with Articles 5 and 6 on account of the difference of procedure applicable for the offences judged under the jurisdiction of the State Security Court.

The applicants complain under Articles 9, 10 and 11 of the Convention on account of being tried for their political beliefs.

THE LAW

1. The applicants complain under Article 6 § 3 (b) of the Convention on account of the non-communication of the Principal Public Prosecutor's opinion before the Court of Cassation to the applicants.

The Court considers that it cannot on the basis of the case file, determine the admissibility of this complaint and that it is therefore necessary, in accordance with Rule 54 § 3 (b) of the Rules of the Court, to give notice of this to the respondent Government.

2. The applicants complain under Articles 6 §§ 1, 2 and 17 of the Convention that they did not receive a fair trial and that the presumption of innocence was violated.

As regards the applicants' complaint under Article 6 § 1, the Court considers that the content of the file does not disclose any lack of fairness as regards the proceedings before the national courts. The Court does not perceive any indication of unfairness or arbitrariness as regards the evaluation of the facts as a whole such as to raise an issue under Article 6 § 1.

As for the applicants' complaint under Articles 6 § 2, the Court considers that there is nothing in the case files which could indicate that the presumption of innocence was violated in any stage of the proceedings and that the applicants failed to substantiate their claims.

It follows that this part of the applications is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention and must be rejected pursuant to Article 35 § 4.

3. The applicants complain under Articles 9, 10 and 11 of the Convention on account of being tried for their political beliefs.

The Court notes that the applicants were tried and convicted on account of aiding and abetting an illegal organisation in accordance with Article 169 of the Criminal Code and not because they were member of a political party nor because of their views. The Court further notes that there is nothing in the case files which could support the applicants' claims concerning the complaints under Articles 9, 10 and 11. The Court therefore considers that this part of the applications is also manifestly ill-founded within the meaning of Article 35 § 3 of the Convention and must be rejected pursuant to Article 35 § 4.

4. The applicants complain under Article 14 of the Convention taken together with Articles 5 and 6 on account of the difference of procedure applicable for the offences judged under the jurisdiction of the State Security Court.

The Court notes that the distinction is made not between different groups of people, but between different types of offence, according to the legislature's view of their gravity. The Court sees no ground for concluding that, this practice amounts to a form of "discrimination" that is contrary to the Convention. Consequently, this part of the applications is also manifestly ill-founded within the meaning of Article 35 § 3 of the Convention and must be rejected pursuant to Article 35 § 4.

For these reasons, the Court unanimously

Decides to join the applications;

Decides to adjourn the examination of the applicants' complaint concerning the non-communication of the opinion of the Principal Public Prosecutor before the Court of Cassation;

Declares the remainder of the applications inadmissible.

Vincent BERGER
Registrar

Georg RESS
President